

portions shall then vest whether the children do or do not survive their parents. It is thought to be an unnatural supposition that the circumstance of such children or grandchildren predeceasing their parents, should have been contemplated as depriving them of the whole of the portion intended for their benefit. What the Court has said is this, that you do not require a *necessary* implication to arrive at the conclusion, that all children, who being sons attain twenty-one, or being daughters attain that age or marry, were intended to take, irrespectively of the question whether they survive their parents or not, and that if you find upon the face of the settlement a clause which renders it *doubtful* whether it was intended that all such children should take, or that those only should take who might survive their parents, the Court leans strongly in favour of the previous supposition, namely, that the probable intention of a person making a settlement would be in favour of the vesting at such fixed period, independently of the question of survivorship. On the other hand the rule is not one of arbitrary construction; the Court does not go out of its way by a forced construction to raise this implication; it must find an implication upon the natural and plain construction of the words in the settlement." And the Vice-Chancellor, applying these principles to the case before him, came to the conclusion that the two children who predeceased George their father were entitled to shares. The general principles laid down in the two foregoing examples have been approved and acted upon in numerous other cases (*a*); [and the rule applies as well to portions created by will as to those created by deed (*b*).]

*** 2. Presumption overcome by the language.** — But [*397] strong as the presumption is in favour of portions vesting in children at an age when they require it, yet if the

(*a*) *Emperor v. Rolfe*, 1 Ves. sen. 208; *Powis v. Burdett*, 9 Ves. 428; *Remnant v. Hood*, 27 Beav. 74; *Perfect v. Curzon*, 5 Mad. 442; *Torres v. Franco*, 1 R. & M. 649; *Woodcock v. Dorset*, 3 B. C. C. 569; *Hope v. Lord Clifden*, 6 Ves. 499; *Bythessea*

v. Bythessea, 23 L. J. N. S. Ch. 1004; *In re Goddard's Trusts*, 5 I. R. Eq. 14; [*Wakefield v. Richardson*, 13 L. R. Ir. 17.]

[(*b*) *Jackson v. Dover*, 2 H. & M. 209; *Re Knowles*, 21 Ch. D. 806.]